ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	122nd Commission Meeting
DATE:	5 April 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Regular HR update – HRS *The AHRO updated on the decisions of the 93rd HRC meeting as follows:* • *Endorsement of the nomination of 15 individuals who have expressed their interest to attend online training which will be conducted by the Malaysian Anti-Corruption Academy. In addition, it was decided that a working lunch will also be provided to the participants.* • *Against the invitation extended only to the two technical working group members by the RMA to attend the workshop on National Risk Assessment, given the relevance it was discussed that the additional officials each from the DoPS, DoI and ADMD will be proposed.* • *Endorsement of nominee to attend the 11th Regional Conference of the Anti-Corruption Initiative for Asia-Pacific while the nominee from the Commission is pending.* • *Following the Commission's decision to ask for a show cause letter from the individual against whom an audit memo was issued, the HRC went through it and decided that additional administrative action is not deemed necessary as the recovery has been made.* • *Approval of travels for the 10th QSM and additionally discussed to approve the travel of Director, DoI to Bumthang Regional Office for the QSM.*	**The Commission noted the decisions of the HRC meeting. Further, additional decisions of the Commission are as follows:** • **Regarding the audit memo, given that the Commission has asked agencies to take actions against individuals for cases of similar nature through Action Taken Report, the Commission directed the HRS to find out with the Director, DoPS on what sort of actions have been taken by the agencies and also seek recommendations of the RAA on type of action to be taken and put up to the HRC urgently. This is to ensure consistency in the actions taken and avoid unnecessary perceptions that ACC is taking clement actions when it concerns its staff.** • **Endorsed the travel of the Director, DoI to the Bumthang Regional Office for the QSM. In addition, the Director was directed to take the opportunity to discuss on the ongoing cases in the region during the visit. Similarly, Commissioner Jamtsho who will be in the**

	• *Expression of interest from Tashi Dema, IPO of DoI for the Australia Awards Scholarship.* • *Followed up with the RCSC regarding the opening of the recruitment for the vacant Executive position in the ACC wherein the RCSC communicated that it will be opened.*	**Trashigang Regional Office to take the opportunity to discuss on the ongoing cases and IEs in the region.** • **The recruitment of the Chiefs for the remaining vacant positions to be tied up with the recruitment of the Director. In addition, the vacant Chief position for the Secretariat Services was also directed to be opened and adjust the position if deemed necessary.**
2	Apprise on issues related to access to the CIMS – ROs *The Head of Regional Office (RO), Phuentsholing on behalf of the ROs apprised on the issues pertaining to access to the CIMS by the regional teams. Given that the RO teams have to multitask, the access to the CIMS has to intermittently switch from portal of the investigator to complaint management officer to members for the staff and from the portal of DoPS Chief to DoI Chief for the Regional Heads. This is given the fact that the existing CIMS has the limitation to provide simultaneous access as multiple users. In this regard, the ROs have to constantly request ICTS to change their user role to access the CIMS thereby making the process cumbersome and affecting efficiency. To this, it was proposed if the the system could be tweaked to allow access as different user simultaneously without having to change frequently.*	**While the Commission acknowledged the limitation of the CIMS, providing uncontrolled access can also undermine confidentiality. Moreover, it was reminded that access to information on cases and complaints must be strictly granted on the need to know basis.** **In addition, the ongoing enhancement of the investigation module has incorporated the feature wherein cases registered under respective regions can be accessed by Heads of the Regions. Similarly, this feature will also be replicated in the complaint module during the enhancement.** **Meantime, the Director of DoPS can nominate a dedicated focal person from the regions to access the complaints module.**

3	Present scripts on IEC for the IVS, MPSCC & AD – ED *The ED presented scripts for the IEC on Integrity Vetting System, Model Public Service Code of Conduct, and Asset Declaration wherein the development has been outsourced. The details of the scripts are annexed as Annex I.*	**In principle, the Commission endorsed the scripts. Besides, some of the additional directions vis-à-vis the specific Scripts are as follows:** **1. Integrity Vetting System** • **Focus on what IVS is about, why it has been instituted, and how it will be implemented.** • **Expound on the fact that the report will be generated exclusively based on the data available within the ACC.** • **Make clear on the process that will ensure the accuracy of the data and process for seeking clarification in case of doubt regarding the report generated by the system.** • **Discuss four categories of reports and associated implications. Further, it was directed to include the restorative aspects of the reports.** • **Replace the proposed HM's quote with the quote on integrity.** **2. Model Code:** • **In view that the clause on disclosure of information in the Model Code has invited media scrutiny, the IEC to emphasize on it to clarify the interpretation of media outlets. The Division was also directed to refer the clarification shared by the Commission with some print media on the same.** • **Emphasize how Model Code will ensure expeditious access to public service.**

		• **Highlight on how it will be implemented.** **3. Asset Declaration** • **Provide details as to who all are included under Schedule I and II rather than just vaguely mentioning Schedule I & II.** • **Keep it as 'as per ACAB' instead of mentioning specific sections of rules and acts.** • **Emphasize on the whistleblowing feature of the ADS.**
4	Present Roll-Out Strategy for Model Public Service Code of Conduct – PD *As per the direction of the 121st Commission meeting to present the detailed roll-out strategy for the Model Code, the Prevention Division presented the outcome of discussion held with the Departments and Divisions. (The detailed presentation attached as Annex I)*	**The Commission commended the Division for coming up with the practical and palatable strategy. Further to this, the Commission directed the following:** • **To find out process entailed to put up the agenda to the Committee 4 Coordinating Secretaries (C4CS).** • **Discuss with Kinley Wangmo, PPD who is the Technical Working Group member for the 13th FYP and Commissioner A Karma Rinzin who is attending the Lab Session on exploring possibilities to sensitize four clusters on Model Code.** • **Include Integrity Vetting hand in hand with the Model Code.**
5	Present Agenda for the 10th QSM – PPD *Subsequent to the directions of the 121st Commission meeting, the PPD presented the revised agenda for the 10th QSM.*	**In principle, the Commission endorsed the agenda.** **Besides the Commission directed PPD to look into presenting the stock of achievements of Departments, Divisions and Regional Offices either during the QSM held in January and July or to the management at the end July and January.**

6	Present program for the visit by CPIB officials to ACC – PPD *The PPD presented the draft program for the visit by CPIB officials to the ACC.*	**The Commission reviewed and endorsed the program. The finalized program reviewed by the Commission is attached as Annex II.**

Engaged in the 13th FYP Lab Session

Commissioner | **Commissioner** | **Chairperson**

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